

REGULATORY POSITIONING MEMO

CONFIDENTIAL – ATTORNEY WORK PRODUCT – NOT FOR PUBLIC DISCLOSURE

REGULATORY STRATEGY MEMO - NOT CLAIM LIMITATIONS *Specific technical implementations (e.g., "SHA-256 certificates") are provided as examples for regulatory compliance demonstration. Patent claims use generic terminology to maintain broad scope.*

SUBJECT: REGULATORY CLASSIFICATION AND RISK POSTURE — OneDuo™

1. CORE POSITION* Infrastructure Classification: OneDuo™ is classified as governance infrastructure rather than an autonomous decision-making entity.

- **Enforcement Layer:** The system functions as a technical enforcement layer (Sovereignty Gate) that structurally requires human authorization before AI-generated artifacts transition to an executable state.
- **Non-Autonomy:** The system cannot initiate finalized actions independently; it merely enforces the presence of a valid, human-signed approval record in the persistence layer.

2. DATA PROTECTION AND PRIVACY* Data Minimization: Aligns with GDPR/CCPA by purging original source content immediately after the generation of the governed artifact.

- **Forensic Compliance:** Supported through the generation of cryptographic destruction certificates. These provide forensic proof of deletion, allowing a posture of non-possession regarding sensitive user source content while retaining a verifiable audit trail.

3. EXPLICIT EXCLUSIONS OneDuo™ is structurally designed as a governance wrapper and is explicitly not classified as:

- Medical Device Software (No autonomous diagnosis).
- Employment Decision Automation (No autonomous hiring/firing).
- Biometric Surveillance (Uses perceptual similarity metrics for intent reconstruction only).
- Autonomous Safety-Critical AI (It is a gatekeeping mechanism, not a steering mechanism).